

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S NOTICE OF INTENT TO
APPEAR AND CONTEST TENTATIVE
RULING, MAY 12, 2026

(SF Local Rule 8.3(D); Cal. Rules of Court, rule 3.1308)

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 To the Court and All Parties:

2 PLEASE TAKE NOTICE that, pursuant to San Francisco Superior Court Local Rule 8.3(D)
3 and California Rules of Court, rule 3.1308, Plaintiff Franciscus Dylan Rosario, in pro per,
4 hereby gives notice of intent to appear and contest the tentative ruling at the May 12, 2026,
5 9:30 a.m. hearing in Department 301 on Defendants' Special Motion to Strike Pursuant to
6 C.C.P. §425.16, filed April 9, 2026.

7 The matter under consideration is the operative opposition record consisting of:

- 8 1. Plaintiff's Consolidated Operative Opposition to Defendants' Special Motion to Strike
9 Pursuant to C.C.P. §425.16; Fifteen-Page Compliant Version (filed May 7, 2026), as the
10 operative opposition designated by Plaintiff's Notice of Withdrawal of April 21, 2026
11 and May 1, 2026 Memoranda and Designation of May 7, 2026 Consolidated Operative
12 Opposition (filed May 7, 2026);
- 13 2. Plaintiff's Request for Judicial Notice (filed May 7, 2026);
- 14 3. Plaintiff's Declaration in Opposition (filed May 7, 2026);
- 15 4. Plaintiff's Evidentiary Objections to Declarations of Tyler J. O'Connell filed April 9,
16 2026 and May 5, 2026 (filed May 7, 2026);
- 17 5. Plaintiff's Indexed Exhibits Volume (filed May 7, 2026);
- 18 6. Plaintiff's Notice of Lodging Trial Reporter's Transcripts, Audio Recordings, and CAD
19 Logs (filed May 7, 2026);
- 20 7. Plaintiff's Notice and Statement to the Court Regarding C.C.P. §425.17 Statutory Bar
21 to Insurance-Industry Anti-SLAPP Misuse, Defense Litigation Conduct, and Certified
22 Court-Record Contradictions (filed May 7, 2026); and
- 23 8. Plaintiff's Notice to the Court and Clerk of May 7, 2026 Cure Filings (filed May 7,
24 2026) (Cover Letter).

25 Plaintiff requests oral argument and intends to address: (i) the §425.17(b) public-interest
26 categorical exclusion that operates as the threshold bar to §425.16; (ii) the Park / Equilon
27 gravamen analysis under step one as it applies to Plaintiff's independent equity claim for
28 extrinsic fraud; (iii) the Flatley illegality exception as established by the certified court

1 record; and (iv) the procedural cure of the over-length memoranda by the May 7, 2026
2 Notice of Withdrawal and Designation, with reference to CRC 3.1113(g) and 3.1300(d).

3 Estimated time for oral argument: 15 to 20 minutes (per side).

4 This Notice is transmitted by 4:00 p.m. Monday, May 11, 2026, in compliance with SF
5 Local Rule 8.3(D). Copies are provided to all counsel of record concurrently. Respectfully
6 submitted May 11, 2026.

7 _____

The foregoing is submitted by Plaintiff in pro per.

Dated: May 11, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:30 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CRC 3.1308	Tentative-ruling procedure (statewide framework)	Notice expressly invokes CRC 3.1308 and identifies tentative-ruling window for May 11, 2026	Notice body	PASS
2	S.F. Superior Court Local Rule 8.3	Tentative-ruling rule for SF Superior Court (Department 301)	Notice transmitted to contest- dept301tr@sftc.org by 4:00 p.m. on May 11, 2026; concurrent service to counsel	Notice body; service block	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
3	CCP section 1010.6	Electronic service of the notice	Notice served by electronic transmission	Proof of Service (POS-050) for this notice filed con- currently	PASS
4	CRC 3.1112(b)	Other papers	Notice filed as 'other papers' in advance of hearing	Caption and cover	PASS
5	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
6	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
7	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
8	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature (dated May 11, 2026) preceding roman appendix	PASS
9	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
10	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	Notice body; graphic signer before appendix; Proof of Service	PASS